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General Knowledge

Indian Polity

STUDY NOTES

State Legislature

STATE LEGISLATURE

Introduction

- The State Legislature in India is outlined in Part VI of the Constitution (Articles 168 to 212).
- It serves as the legislative body at the state level, equivalent to the Parliament at the national level.
- Each Indian state has its own legislature, which can either be unicameral or bicameral.

Types of State Legislatures

- Unicameral Legislature:
  - Most Indian states have a unicameral legislature, meaning they consist only of a Legislative Assembly (Vidhan Sabha).
- Bicameral Legislature:
  - A few states have a bicameral legislature, which includes both a Legislative Assembly and a Legislary Council (Vidhan Parishad).

Article 168

- This article lists the states with a bicameral legislature:
  - Bihar
  - Maharashtra
  - Karnataka
  - Andhra Pradesh
  - Telangana
  - Uttar Pradesh
  - West Bengal (pending reconstitution of the Council).

Creation and Abolition of Legislative Councils

- Article 169:
  - Parliament has the authority to establish or dissolve a Legislative Council in any state.
  - This can happen if the State Legislative Assembly passes a resolution by a special majority supporting the change.

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- ## Legislative Assembly (Vidhan Sabha)

  1. ### Composition
     - Members are directly elected by the public through universal adult suffrage.
     - The number of members varies from state to state, but Article 170 fixes the following limits:
       - Maximum: 500 members
       - Minimum: 60 members
     - Smaller states, such as Goa and Sikkim, may have fewer than 60 members.
  2. ### Tenure
     - The normal tenure of the Legislative Assembly is 5 years, as per Article 172.
     - The Assembly can be dissolved earlier by the Governor, as recommended by the Council of Ministers.
  3. ### Nominated Member
     - Article 333 once allowed the Governor to nominate one member from the Anglo-Indian community if their representation was deemed insufficient.
     - 104th Constitutional Amendment Act (2019) removed this provision, ending the practice of nominating Anglo-Indian members.
  4. ### Sessions
     - The Governor is responsible for summoning the sessions of the Legislative Assembly as per Article 174.
     - The gap between two sessions cannot exceed six months.

- ## Legislary Council (Vidhan Parishad)

  1. ### Composition
     - Members are partly elected and partly nominated.
     - Article 171:
       - The total strength of the Legislative Council cannot exceed one-third of the total members in the Legislary Assembly.
       - The minimum number of members should be 40.
  2. ### Membership
     - The members of the Legislary Council are elected from different constituencies within the state.

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Members are elected by legislative assembly members	1/3
Members elected from local bodies	1/3
Members elected by graduates of three years standing and residing in the state	1/12
Members elected by teachers of three years standing and not lower in standard than secondary school	1/12
Members nominated by the governor	1/6
5/6 of the total number of members of a legislative council are indirectly elected and 1/6 are nominated by the governor.	
This scheme of composition of a legislative council as laid down in the Constitution is tentative and not final. The Parliament is authorized to modify or replace the same.	

- ## Duration and Tenure in State Legislature

Legislative Assembly	Legislative Council
The normal term is 5 years from the date of the first session	The legislative council is a permanent body.
However, the Governor can dissolve it anytime.	One of the third members retires every two years and the vacancy is filled at the beginning of the third year
During an emergency, its term can be extended by one year at a time. But not beyond a period of 6 months after an emergency is revoked.	The term of each member is 6 years. A member can be re-elected or re-nominated any number of times.

States with a Legislative Council (as of now)

1. Andhra Pradesh (58) seats.
2. Bihar (75) seats.
3. Karnataka (75) seats.
4. Maharashtra (78) seats.
5. Telangana (40) seats.
6. Uttar Pradesh (100) seats.

West Bengal (though its Council is currently not functioning, it is pending reconstitution)

- ## Qualifications for Membership in State Legislature

Qualifications under Constitution	
1	Must be a citizen of India
2	25 years or above for the Legislative Assembly
3	30 or above for the Legislative Council
4	Possess such other qualifications as may be prescribed by the Parliament.
Additional Qualifications under RPA (1951)	
1	A person to be elected to the legislative council must be an elector for an assembly constituency in the concerned state and to be qualified for the governor's nomination, he must be a resident in the concerned state.
2	A person to be elected to the legislative assembly must be an elector for an assembly constituency in the concerned state
3	He must be a member of the SC or ST if he wants to contest a seat reserved for them. However, a member of SC or ST can also contest a seat not reserved for them.

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• Disqualification Criteria for State Legislature Members

Under the provisions of the Constitution	
1	A person is disqualified if they hold an office of profit under the Government of India or any State Government, excluding the positions of Minister at the central or state level, or any office that is exempted by a specific State law.
2	A person is disqualified if they are declared to be mentally unsound by a competent court.
3	An individual who is an undischarged insolvent is not eligible to hold an office of profit.
4	A person is disqualified if they are not an Indian citizen, have voluntarily acquired the citizenship of a foreign country, or have made a formal declaration of allegiance to a foreign nation.
5	A person is disqualified if they are deemed ineligible under any law enacted by Parliament.
Disqualification under the Representation of Peoples Act, 1951	
1	The individual must not have been found guilty of specific election-related offenses or corrupt practices during elections.
2	The person should not have been convicted for any offense that resulted in imprisonment for two years or more. However, being detained under a preventive detention law does not lead to disqualification.
3	The person must not have failed to submit the account of their election expenses within the prescribed time.
4	The individual should not have any financial interest in government contracts, works, or services.

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5	The person must not hold the position of a director, managing agent, or any office of profit in a corporation where the government owns at least 25 percent of the shares.
6	The individual must not have been dismissed from government service due to corruption or disloyalty to the state.
7	The person should not have been convicted for inciting enmity between different communities or for engaging in bribery.
8	The individual must not have faced punishment for advocating or practicing social crimes such as untouchability, dowry, or sati.
9	According to Section 8 (3) of the Act, if an MP or MLA is convicted of any other crime and sentenced to two or more years in jail, they will be disqualified for six years starting from their release.

Ruling Of Supreme Court Regarding Section 8(4)- RPA

- Section 8(4) previously permitted convicted MPs, MLAs, and MLCs to retain their positions as long as they filed an appeal against their conviction or sentence in a higher court within three months from the trial court's judgment.
- However, in July 2013, the Supreme Court declared Section 8(4) of the Representation of the People Act (RPA), 1951, as unconstitutional, ruling that the disqualification of a legislator begins from the date of their conviction.

Defection Disqualification in State Legislatures

1	A person will be disqualified from being a member of either House of the State legislature if they are disqualified due to defection, as specified in the Tenth Schedule.
2	The determination of disqualification under the Tenth Schedule is made by the Chairman for the Legislative Council and the Speaker for the Legislative Assembly, not by the Governor.
3	In 1992, the Supreme Court held that the decisions made by the Chairman or Speaker regarding disqualification are subject to judicial review.

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In the following cases, a member of the state legislature vacates his seat.

Double Membership	A person cannot hold membership in both Houses of the state legislature simultaneously.
Disqualification	If a member of the state legislature becomes subject to any of the disqualifications, their seat will be declared vacant.
Resignation	A member may resign from their seat by submitting a written resignation to the Chairman of the Legislative Council or the Speaker of the Legislative Assembly, depending on the case. The seat will be vacant once the resignation is accepted.
Absence	A seat in the state legislature can be declared vacant if a member is absent from all meetings for sixty days without permission.
Other Cases	• A seat may also become vacant if the member's election is declared void by the Court. • A member's seat may be vacated if they are expelled from the house. • If a member is elected to the office of President or Vice President, their seat in the legislature becomes vacant. • A member's seat will be vacated if they are appointed as the Governor of a state.

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- ## Powers and Functions

Legislative Powers

- The State Legislature has the authority to make laws on matters listed in the State List and Concurrent List under the Seventh Schedule.
- In the event of a conflict between state and central laws on a subject in the Concurrent List, the central law prevails as per Article 254.
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Financial Powers

- A Money Bill can only be introduced in the Legislative Assembly (Vidhan Sabha).
- The Legislative Council can suggest amendments to money bills, but the final decision lies with the Legislative Assembly.
- The Annual Financial Statement (state budget) is presented to the Legislative Assembly for approval, and no tax can be imposed without its consent (Article 202-207).

Control over the Executive

- The State Legislature exercises control over the State Executive by asking questions, discussing issues, and moving motions such as no-confidence and adjournment motions.
- The Council of Ministers is accountable to the Legislative Assembly (Article 164).
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Special Provisions

Amendments Related to the State Legislature

- The 42nd Constitutional Amendment Act of 1976 transferred several subjects from the State List to the Concurrent List, reducing the legislative powers of the State Legislature.
- The 44th Constitutional Amendment Act of 1978 restored certain powers to the states.
- The 104th Constitutional Amendment Act of 2019 eliminated the provision for the nomination of Anglo-Indians to the State Legislatures and the Lok Sabha.

Power of the Governor

- The Governor is a part of the State Legislature (Article 168).
- The Governor summons and prorogues the Legislature, dissolves the Legislative Assembly, and gives assent to bills (Article 200).
- Regarding Money Bills, the Governor has the option to either grant assent or withhold it but cannot return the bill for reconsideration.
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Legislative Process

- The process for passing a bill in the state legislature is similar to that in Parliament:
    - First Reading: Introduction of the bill.
    - Second Reading: Detailed discussion and committee review.
    - Third Reading: Final approval of the bill.
- A Bill (other than a money bill) can originate in either house if the state has a bicameral legislature.

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Comparison with Parliament

- The State Legislature operates in a manner similar to Parliament but has a more limited law-making role focused on state-related subjects.
- Unlike Parliament, a no-confidence motion can only be introduced in the Legislative Assembly.

POINTS TO REMEMBER

1. **State Legislature Types**: Can be unicameral (one house) or bicameral (two houses).
2. **Article 168**: Defines the structure and lists states with a bicameral legislature.
3. **Creation and Abolition of Councils**: Parliament can create or abolish a Legislative Council through a resolution passed by the State Assembly (Article 169).
4. **Legislative Assembly Membership**: Directly elected by people, with 60 to 500 members based on state population.
5. **Tenure of Legislative Assembly**: Fixed at 5 years, can be dissolved earlier by the Governor.
6. **Governor's Role**: Summons, prorogues sessions, and gives assent to bills (Article 200).
7. **Legislary Council Composition**: Members elected and nominated; not more than one-third of the Legislative Assembly's strength (Article 171).
8. **Money Bill**: Only introduced in Legislative Assembly; the Legislative Council can recommend amendments (Article 202-207).
9. **Legislative Process**: Includes three readings: Introduction, Discussion, and Final Approval. Bills can originate in either house if bicameral.
10. **Disqualification**: Members are disqualified for holding an office of profit, conviction for serious crimes, or prolonged absence without permission.

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